AS TO THE ADMISSIBILITY OF

Application No. 24838/94
by Helen STEEL, Rebecca LUSH, Andrea NEEDHAM,
David POLDEN, Christopher COLE and Michael SCHWARZ
against the United Kingdom

The European Commission of Human Rights (First Chamber) sitting in private on 26 June 1996, the following members being present:

Mr. C.L. ROZAKIS, President
Mrs. J. LIDDY
MM. E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
M.P. PELLONPÄÄ
B. MARXER
G.B. REFFI
B. CONFORTI
N. BRATZA
I. BÉKÉS
G. RESS
A. PERENIC
C. BÎRSAN
K. HERNDL

Mrs. M.F. BUQUICCHIO, Secretary to the Chamber

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 31 May 1994 by Helen STEEL, Rebecca LUSH, Andrea NEEDHAM, David POLDEN, Christopher COLE and Michael SCHWARZ against the United Kingdom and registered on 8 August 1994 under file No. 24838/94;

Having regard to:

- the reports provided for in Rule 47 of the Rules of Procedure of the Commission;

- the observations submitted by the respondent Government on 9 May 1995 and the observations in reply submitted by the applicants on 11 August 1995;

Having deliberated;

Decides as follows:

THE FACTS

The applicants are all United Kingdom citizens. They are represented by Mr. P. Leach of Liberty, London. The facts of the case, as submitted by the parties, may be summarised as follows.

(i) The particular circumstances of the case

The first applicant was born in 1965.

Just after 14.00 on 22 August 1992 she was arrested by a police officer for allegedly committing a breach of the peace at a protest against grouse shooting. She was taken to a police station where she arrived at 19.15. The police custody record gives "breach of the peace" as the reason for her arrest, and states that her detention was

authorised "to prevent any further breach of the peace". The record also records that she was charged at 00.56 with breach of the peace pursuant to Section 115 of the Magistrates Court Act 1980. The charge stated "That you did on Saturday 22 August 1992 at Wheeldale Beck in the parish of Egton behave in a manner whereby a breach of the peace was occasioned".

At 9.40 on 24 August 1992 she was charged with using "threatening, abusive or insulting words or behaviour within the hearing or sight of a person likely to be caused harassment, alarm or distress", contrary to Section 5 (1) of the Public Order Act 1986. She attended court the same morning and was released from custody. A further charge under Section 5 (1) was added later.

The first applicant's trial took place before the Whitby Magistrates' Court between 15 and 20 February 1993. She was convicted on the Section 5 charge relating to the morning of 22 August 1992, and acquitted on the Section 5 charge relating to the afternoon. The magistrates found the complaint regarding the alleged breach of the peace proved, but did not specify whether the complaint related to the behaviour in the morning or the afternoon.

On 1 December 1993 the Teesside Crown Court heard the first applicant's appeal. She was fined £70.00 in respect of the Section 5 offence, and asked whether she wished to be bound over for 12 months in the sum of £100.00 in respect of the breach of the peace. She refused to be bound over, and was committed to prison for 28 days.

* * *

The second applicant was born in 1973.

At about 16.15 on 15 September 1993 she was arrested by a police officer for conduct "likely to cause a breach of the peace". She had been participating in a peaceful protest against the construction of the M11 motorway, and was arrested whilst standing in front of a digger. She was kept in custody until 9.40 the following day, according to the custody record, because of a belief that she would cause a further breach of the peace if released. She appeared before Redbridge Magistrates' Court the same morning to answer an allegation that she had engaged in conduct likely to provoke a disturbance of the peace. The proceedings were adjourned to 14 December 1993 and the second applicant was released.

On 14 December 1993 the allegation of conduct likely to cause a breach of the peace was found to have been made out. The applicant was represented by a barrister in private practice acting pro bono. The second applicant was asked if she agreed to being bound over to keep the peace and be of good behaviour. She refused and was committed to prison for seven days. The draft order of recognizance (which the applicant refused) referred to the complaint and also made reference to Section 115 of the Magistrates' Courts Act 1980.

On 23 December 1993 the second applicant applied to magistrates for them to state a case to the High Court. They replied on 24 December that they would require a recognizance of £500.00 to prosecute an appeal without delay, submit to judgment and pay any costs ordered by the High Court. After correspondence between Liberty and the clerk to the court in which it was pointed out that the second applicant was in receipt of income support and had a net income (income support of £34.80 less £20.00 for food and £10.00 for fines) of £4.80 and a bank overdraft of £1,020.00, the magistrates agreed to reduce the recognizance to £400.00. The magistrates also agreed that the application to state a case could remain pending whilst the second applicant applied for legal aid. Legal aid was refused on 11 January 1994 and the second applicant's appeal against this refusal was heard on 16 March 1994 and dismissed on 19 March 1994.

* * *

The third, fourth and fifth applicants were born in 1965, 1940 and 1963 respectively.

At about 8.25 on 20 January 1994 these three applicants were arrested by police officers for breach of the peace. They had been protesting against the sale of fighter helicopters at a conference centre in central London where the "Fighter Helicopter II Conference" was being held.

The custody record for each of these applicants records the "circumstances" (the word "charges" having been deleted) as:

> "Breach of the peace, common law.
>
> On 20 January 1994 at ... constituted or was likely to provoke a disturbance of the peace to be brought before a justice of the peace to be dealt with according to law. Contrary to common law."

The three were taken to court from the police station where they were being held at about 15.45 on the same day, when the proceedings were adjourned because of lack of time. The applicants were released from custody. On 25 February 1994 the complainant offered no evidence and the proceedings were withdrawn.

* * *

The sixth applicant was born in 1963. He is a solicitor.

At about 11.00 on 7 December 1993, whilst attending, as a legal observer, a police operation to clear protestors from a site where a 300-year old tree was being felled as part of the M11 construction project, he was informed that a group of persons had been detained to prevent a breach of the peace. He questioned the justification for their detention, and was himself detained for about five minutes. He was then released without charge or apology.

(ii) Relevant domestic law and practice

a. Breach of the peace

Breach of the peace is a common law concept. It was recently defined by the High Court in R. v. Howell [1982] 1 QB 416. A breach of the peace was held to occur:

> "...where there is an act done or threatened to be done which either harms a person, or in his presence his property, or is likely to cause such harm, or which puts someone in fear of such harm being done..."

Any citizen has a common law power of arrest for actual or "apprehended" breach of the peace: a citizen may arrest a person who has caused or is causing a breach of the peace, or whom the citizen reasonably believes is likely to cause a breach of the peace (Albert v. Lavin, [1982] AC 546).

b. Binding over orders

i. Powers of the court

A binding over order may be imposed by a magistrates' court on any person appearing before it, including an acquitted defendant or a witness. It may be imposed on a defendant in the course of pending criminal proceedings and on a convicted defendant in addition to any other penalty.

The order takes the form of a requirement that the person concerned "enter into a recognizance" - that is, give an undertaking secured by a sum of money fixed by the court - to keep the peace and/or to be of good behaviour for a specified period. No additional conditions may be imposed. If the undertaking is refused, the court may impose a term of imprisonment of up to six months or until the undertaking is made where Section 115 of the Magistrates' Court Act 1980 applies. Under the common law powers, which still exist, there is no limit to the term of imprisonment.

ii. Grounds for order

For a person to be bound over to keep the peace, it is not necessary for the court to find that a breach of the peace has actually occurred (R. v. Morpeth Ward Justices, ex parte Ward (1992) 95 Cr App Rep 215). An "apprehended" breach of the peace is sufficient, i.e. a finding that there is a risk of a future breach of the peace, including a risk that the conduct of the person concerned, even if not itself a breach of the peace, will cause others to commit one (R. v. Aubrey-Fletcher, ex parte Thompson [1969] 1 WLR 872; ex parte Benjamin, loc. cit.).

The power to bind a person over to be of good behaviour is independent of breach of the peace and may be exercised in a wide variety of circumstances. Judicial practice continues to reflect the influence of Blackstone, who in the 18th century wrote:

> "...a man may be bound to his good behaviour for causes of scandal, contra bonos mores as well as contra pacem... or for words tending to scandalise the government, or in abuse of the officers of justice... Thus also a justice may bind over... persons whose misbehaviour may reasonably bring them within the... words of the [1361 Act] as persons not of good fame" (Commentaries on the Law of England, vol. iv, p. 256).

Neither type of binding over requires that the person concerned be shown to have committed an act which is criminal or otherwise intrinsically unlawful.

iii. Procedure

The powers of the magistrates may be invoked by laying a formal complaint leading to the issue of a summons (Magistrates' Courts Act 1980 ("the 1980 Act"), Section 115 (1)). The hearing then proceeds in the manner prescribed by the 1980 Act for civil cases. The magistrates may adjourn the proceedings in the interests of justice at any time, evidence must be admissible and given on oath and the court may not make an order unless, at the conclusion of the hearing, it finds the complaint proved. Legal aid is available for proceedings brought under Section 115 (Section 19 (5) of the Legal Aid Act 1988).

The magistrates may also exercise their powers outside the statutory procedure. They may act of their own motion, for example to deal with disruption in court. In addition, a person arrested for breach of the peace may be brought directly before the magistrates for binding over to be considered, whether or not the police also bring a substantive charge.

Where the police bring a person directly before the magistrates, there is no requirement that they prove their allegations by admissible evidence. They are under no obligation in advance of the hearing to inform the person of the allegations they intend to make, nor to disclose the material on which they intend to rely in court. Presenting a detainee with a "charge" of breach of the peace does not automatically engage the statutory complaint procedure, but rather operates as notice that the police intend to invoke the magistrates'

binding over powers.

A binding over order is not a criminal conviction (R. v. London Quarter Sessions, ex parte Metropolitan Police Commissioner [1948] 1 KB 670). The statutory complaint procedure is classified as part of the civil rather than criminal jurisdiction of a magistrates' court. There have been acknowledgements that proceedings leading to binding over are "analogous" to criminal proceedings (Everett v. Ribbands [1952] 1 All ER 823) or "quasi-criminal"; it appears, however, that the civil rather than the criminal standard of proof applies.

iv. Consequences of breach

Where a person fails to keep the peace or to be of good behaviour in breach of a binding over order, the magistrates may "estreat" the recognizance, i.e. order forfeiture of all or part of the sum in which the person was bound over (1980 Act, Section 120). No other penalty may be imposed.

v. Appeals

An order of the magistrates to require a person to enter into a recognizance to keep the peace or to be of good behaviour can be appealed either to the High Court or the Crown Court. An appeal to the High Court is limited to questions of law and proceeds by way of "case stated". Before stating a case, the magistrates may require the appellant to enter into a recognizance to pursue the appeal and to pay costs. An appeal to the Crown Court proceeds as a de novo hearing of all issues of fact and law.

The powers of the Crown Court and High Court on a successful appeal include reversing or varying the magistrates' decision but do not extend to the award of compensation.

c. Relevant criminal offences

Section 5 of the Public Order Act 1986 ("the 1986 Act) creates the offence of threatening, abusive, insulting or disorderly conduct likely to harass, alarm or distress others. It is triable before magistrates and is punishable by fine. It is a defence to a charge under Section 5 for the accused to show that the behaviour in question was reasonable in the circumstances.

d. The 1994 Report of the Law Commission

In response to a request by the Lord Chancellor to examine binding over powers, in February 1994 the Law Commission published its report entitled "Binding Over" ("the Report"). The Report concluded that various substantive and procedural aspects of binding over were objectionable in principle and that the areas in which the power was of practical utility had largely been brought within the scope of substantive criminal law, inter alia by Section 5 of the 1986 Act. The Report recommended abolition of the power to bind over.

The Law Commission was concerned at the lack of certainty associated with binding over (Report, paras. 4.16 - 4.34, 4.38). In relation to the grounds for making an order, the commission felt that the breadth of operation of the concept of "apprehended" breach of the peace and the vagueness of the contra bonos mores conception of "good behaviour" fell short of the standards of certainty required where a coercive sanction (i.e. imprisonment for refusal) is in prospect. Orders based on those concepts, requiring a person to "keep the peace" or to "be of good behaviour", gave insufficient indication to the person bound over as to the conduct to be avoided in order to be safe from estreatment. It was observed that these matters create particular difficulty for participants in protest activity (e.g. ex parte Ward, (1992) 95 Cr App Rep 215, referred to above, which concerned a

demonstration against pheasant shooting).

The Law Commission tentatively examined the compatibility of present law and practice with the Convention (Report, Part V). Given the "civil" classification of binding over, it saw difficulty in regarding arrest and detention with a view to production of a person before the magistrates for binding over as "bringing him before the competent legal authority on reasonable suspicion of having committed an offence" within Article 5 para. 1 (c), a problem compounded in a case of "apprehended" breach of the peace where no actual unlawful conduct is alleged to have occurred. The Law Commission doubted whether imprisonment for refusal to be bound over could be regarded as non-compliance with an "obligation prescribed by law" within Article 5 para. 1 (b) given the generality of the obligation, common to all members of society, to keep the peace or be of good behaviour.

The Law Commission felt that an arrest or binding over order made on the basis of breach of the peace might, and an order made on contra bonos mores grounds would, infringe the principle of certainty (Eur. Court. H.R., Sunday Times judgment of 26 April 1979, Series A no. 30) and thus fail to meet the various requirements of "lawfulness" found in Article 5 para. 1 (b) and (c). It was similarly concerned that insofar as such measures were invoked against participants in protest activity or expression of unpopular views, the consequent interference with rights of freedom of expression or association might fail to meet the "prescribed by law" requirement of paragraph 2 of Articles 10 and 11.

On the procedural side, the Law Commission found that the summary nature of the binding over jurisdiction outside the statutory complaint procedure had "an inherent potential for unfairness" (Report, para. 4.49). In the light of the penal characteristics of binding over, the commission thought it "unwise to assume" that binding over proceedings would not be regarded as criminal in the context of Article 6 and questioned whether the non-statutory procedure, particularly where invoked against an acquitted defendant or a witness, afforded "adequate time and facilities" as required by Article 6 para. 3 (b) (Report, paras. 5.16 - 5.18).

e. Legal aid

The "Green Form" scheme provides two hours' worth of help from a solicitor, and can include preparation for a court case, but does not provide for representation. An extension of the costs limit can be granted by the Legal Aid Board. Assistance by way of Representation ("ABWOR") enables the court, in limited circumstances, to appoint a solicitor who happens to be within the court precincts for purposes other than the provision of ABWOR to represent a party who would not otherwise be represented. The appointment may be made either of the court's own motion or on application by a solicitor. The court is under no obligation to advise a party of the possibility of an appointment.

Where proceedings are brought under Section 115 of the Magistrates' Courts Act 1980, criminal legal aid is available.

An appeal to the High Court from a magistrates' court or the Crown Court is covered by the civil legal aid scheme. That scheme also covers proceedings in the High Court for habeas corpus or judicial review and civil proceedings for compensation for wrongful detention.

COMPLAINTS

The applicants allege violation of Articles 5, 6, 10, 11 and 13 of the Convention.

In connection with Article 5, they allege that the concept of breach of the peace and the power to bind over are not sufficiently

defined in domestic law to be "prescribed by law", and that detention for breach of the peace is not covered by any of the categories permitted by Article 5 para. 1 of the Convention. They point to the Law Commission's 1994 report on Binding Over (Law Com. No. 222, Cm 2439) which describes a number of defects in the system and concludes that powers to bind over should be abolished without replacement. They consider that imprisonment for a refusal to be bound over does not fall within any of the categories of detention permitted by Article 5 para. 1 of the Convention. Because magistrates may only be sued for unlawful imprisonment if they have acted in bad faith, which is not alleged in the present case, the applicants also see violations of Article 5 para. 5 of the Convention.

The applicants also see violations of Article 6 para. 3 (a)-(e), to the extent that detention for refusal to be bound over is treated as a criminal offence, in particular in that legal aid is not available for persons without sufficient means, such as the first and second applicants. They consider that because proceedings for breach of the peace do not have to be proven beyond reasonable doubt, Article 6 para. 2 has also been violated.

The applicants complain that the uncertainty inherent in the concept of breach of the peace and the power to bind over violates Articles 10 and 11 of the Convention. In their observations of 11 August 1995 they submit that to restrict freedom of expression on the basis that certain conduct might not be "good" or might be viewed by fellow-citizens as "bad" cuts through the notion of necessity in a democratic society.

The first and second applicants allege a violation of Article 13 of the Convention in connection with their refusal to be bound over.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 31 May 1994 and registered on 8 August 1994.

On 11 January 1995 the Commission decided to communicate the application to the respondent Government, pursuant to Rule 48 para. 2 (b) of the Rules of Procedure.

The Government's written observations were submitted on 9 May 1995. The applicants replied on 11 August 1995.

On 24 October 1995 the Commission granted the applicants legal aid.

THE LAW

1. The first to fifth applicants allege violations of Articles 5, 6, 10 and 11 (Art. 5, 6, 10, 11) of the Convention in connection with their arrest and detention, and in connection with proceedings for breach of the peace and detention where a person has refused to be bound over. The first and second applicants add an allegation of Article 13 (Art. 13) in connection with their refusal to be bound over.

The Government submit that the initial arrest and detention of the first to fifth applicants was in accordance with the well established common law power of arrest in respect of actual or reasonably apprehended breach of the peace. They consider that the concept of breach of the peace itself has been defined in a way which is compatible with the requirements of the Convention. In particular, they regard the applicants' detention as justified under Article 5 para. 1 (b) or (c) (Art. 5-1-b, 5-1-c). In connection with Article 5 para. 1 (b) (Art. 5-1-b), the Government take the view that the obligation at stake is the specific obligation to avoid conduct either involving violence or the threat of violence, or giving rise to a

situation where there is a real risk that such violence might occur. In the alternative, the Government submit that the detention was justified under Article 5 para. 1 (c) (Art. 5-1-c)on the ground that the definition of breach of the peace is anchored in the notion of violence and is therefore in keeping with the idea of an offence.

As to the detention of the first and second applicants after they had refused to be bound over, the Government submit that Article 5 para. 1 (b) (Art. 5-1-b) applies: they consider that the applicants were ordered to enter into recognizances to keep the peace, and that the refusal to enter into the recognizances was the "non-compliance with the lawful order of a court" referred to in that provision. They accept that this analysis conflicts with the view of the Law Commission that a person who refuses to be bound over "disobeys no order of the court and does nothing else which would justify deprivation of liberty under the Convention". They add that the applicants had a specific obligation not to commit a breach of the peace, and that a specific finding of a breach of the peace was made in each case.

Under Article 5 para. 5 (Art. 5-5) of the Convention, the Government's principal contention is that as there was no violation of one of the other provisions of Article 5, Article 5 para. 5 (Art. 5, 5-5) has no application. In any event, they point to the possibility of an action for assault, battery or false imprisonment if arrest were unlawful, and to the possibility of an action against the justices who detained them if (but only if) the justices exceeded their jurisdiction and acted in bad faith.

In connection with Article 6 (Art. 6) f the Convention, the Government submit that the proceedings against the second applicant were civil, rather than criminal, so that Article 6 para. 3 (c) (Art. 6-3-c) does not apply. They point out that the applicant was in fact represented at first instance, and add that as the Convention does not give the right to appeal, States have a margin of appreciation in setting up legal and administrative schemes as to the circumstances in which appeals may be made. They consider that the denial of legal aid and the requirement as to recognizances did not prevent an effective appeal in breach of the provisions of the Convention.

The Government submit that the concept of breach of the peace as judicially defined complies with the Convention requirements as to foreseeability and certainty, so as to be compatible with Article 10 (Art. 10) of the Convention. The justices found a breach of the peace in the case of the first applicant, and it must have been clear from that finding what conduct she was to refrain from in order to avoid a further finding of a breach of the peace. Article 10 (Art. 10) provides for the limitation of freedom of expression for the prevention of "disorder" as well as crime.

The applicants disagree with the Government.

For the applicants, notwithstanding recent case-law, the procedure by which the first to fifth applicants were arrested and detained was not "prescribed" by law. They point in particular to the uncertainty brought about by the application of the notion of breach of the peace to include apprehended breaches, and to the confusion between causing a breach of the peace and occasioning one. They consider that Article 5 para. 1 (b) (Art. 5-1-b) cannot apply where there is no concrete and specific obligation, and the only obligation on these applicants was the general obligation which applies to everyone at all times. They underline that if Article 5 para. 1 (b) (Art. 5-1-b) were to apply to their detention, Article 5 para. 1 (c) (Art. 5-1-c) would be rendered redundant, and the protection of Article 5 para. 3 (Art. 5-3) would be lost. With specific reference to Article 5 para. 1 (c) (Art. 5-1-c), the applicants consider that it is not open to the Government to claim that the notion of breach of the peace is similar to an offence, and then to claim that breach of the peace does

not constitute a criminal offence. They add that there is no duty to bring a person arrested for breach of the peace before a court, and that even if such a person is brought before a court, the court does not decide issues of innocence or guilt: there is not even any need to find that a breach of the peace has occurred before the powers to bind over are exercised. Even if Article 5 para. 1 (c) (Art. 5-1-c) were to apply, the applicants consider that Article 5 para. 3 (Art. 5-3) of the Convention was violated because of the absence of any duty to bring the arrested person before a court. Further, there is never an intention to bring before a court for the purpose of having a genuine criminal offence determined.

In connection with the subsequent detention of the first and second applicants, these applicants submit that the notion of binding over is so vague that their detention cannot be sensibly described as being in accordance with a procedure prescribed by law at all. They refer to the Lw Commission's comment that "the most remarkable feature of binding over is that, whilst in form recognizances to be of good behaviour are imposed by the agreement of the person bound over, he or she can be imprisoned if he or she declines a court's invitation to enter into such an agreement".

Under Article 5 para. 5 (Art. 5-5) of the Convention, the applicants consider that Section 108 of the courts and Legal Services Act 1990 prevents the first and second applicants from bringing any action against the magistrates who ordered their committal, as there was no question of bad faith here.

In connection with Article 6 (Art. 6) of the Convention, the applicants' primary submission is that the proceedings against both the first and second applicants determined a civil obligation. Subsidiarily they argue that a "criminal charge" was determined. They complain that the charges against the first and second applicants were vague, and did not refer to any specific acts, and that the first applicant was never informed at all of the nature and cause of the accusation against her. The applicants accept that there was a discretion in the magistrates to grant the second applicant legal aid, but point to the limits on that discretion imposed by Sections 21 and 22 of the Legal Aid Act 1988. Moreover, they see the combination of the refusal of legal aid and the requirement of recognizances for the second applicant's appeal as a denial of access to an appeal.

As in their submissions under Article 5 (Art. 5) of the Convention, the applicants submit that the domestic law is insufficiently precise to comply with Article 10 (Art. 10) of the Convention. They regard the powers to deal with breach of the peace and to bind over as disproportionate to any aim of Article 10 (Art. 10)- both as regards the arrest and detention of the first to fifth applicants, and as regards the subsequent detention of the first and second applicants. As to the first and second applicants, the applicants note that if they had agreed to be bound over and then breached the agreement, the courts would have had no power to send them to prison.

The Commission considers, in the light of the parties' submissions, that the case relating to the first to fifth applicants raises complex issues of law and fact under the Convention, the determination of which should depend on an examination of the merits of the application as a whole. The Commission concludes, therefore, that this part of the application is not manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention. No other grounds for declaring it inadmissible have been established.

2. The sixth applicant makes, in substance, the same complaints as the third to fifth applicants.

The Commission notes, however, that the sixth applicant, if he

was detained at all, was detained on the ground that he had questioned the justification for the detention of other persons. He does not claim that he was detained pursuant to breach of the peace powers. He was not invited to be bound over because he was never brought before a court.

The Commission finds that, to the extent that the sixth applicant may claim to be a victim of a violation of the Convention, he has failed to exhaust domestic remedies available to him because he has not challenged the detention by way of an action for false imprisonment or trespass to the person. In such an action, the sixth applicant could have tested his claim that he was detained, and could have alleged that that detention was not covered by domestic law - including the breach of the peace provisions which were applied in the case of the first to fifth applicants.

It follows that the sixth applicant has not, in accordance with Article 26 (Art. 26) of the Convention, exhausted the remedies available under United Kingdom law. It follows that this part of the application must be rejected under Article 27 para. 3 (Art. 27-3) of the Convention.

For these reasons, the Commission, unanimously,

DECLARES ADMISSIBLE, without prejudging the merits, the application as brought by the first to fifth applicants;

DECLARES INADMISSIBLE the application as brought by the sixth applicant.

Secretary to the First Chamber — President of the First Chamber

(M.F. BUQUICCHIO) — (C.L. ROZAKIS)